

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

W.P.No.62143 of 2021

M. Haroon Ashraf versus Dr. Fayyaz Ranjha, etc.

<i>Sr. No. of order/ Proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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17.11.2021	Petitioner in person with Ch. Muhammad Abbas Kamboh, Advocate. Barrister Hassan Khalid Ranjha, Assistant Advocate General, Punjab; Ms. Zarish Fatima, Assistant Attorney General for Pakistan; Rana Muhammad Majid, Advocate; Ch. Muhammad Shahid Iqbal, Advocate; Mr. Muteen-ul-Haq Chaudhry, Advocate; Ch. Muhammad Naseer, Advocate; Mr. Nasrullah Khan Babar, Advocate and Mr. Muhammad Farooq Khokhar, Advocate.
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This Constitutional petition, filed by the petitioner in person, is based on jumbled and incoherent facts, vague in details, raising multifarious and indefinite grounds and allegations requiring roving inquiry in affairs of various departments for fishing out some kind of a case with the following prayer which itself is also multidimensional: -

“In view of above submissions, it is, therefore, most respectfully & humbly prayed that (1)Please make a direction to the respondent No.2,3,4,& 5 to maintain their honesty, integrity and keep justice according to law and merit and remain within their admitted sphere of jurisdiction and domain as public functionaries and stop lifting/missing of persons from homes with the help of other departments such as Railway police etc. don’t send biased malicious report to health authorities to play with career and character of innocent petitioner to infringe his rights, and put the record in straight line according to facts and redress the grievances of

petitioner and family; (2) Also basic necessities of job security, education, health, etc. must be provided to the petitioner and his family. Petitioner and his family should be given protection of life, Chadar Chaar Dewaaree, property, job, dignity and honour in accordance with law.”

2. Briefly stated the facts of the case as narrated in the petition and argued by the petitioner himself are that the petitioner was appointed as Medical Officer on contract basis in Health Department on 07.11.2005 and he claims that he was removed from his job on the basis of baseless and *mala fide* allegations levelled against him relating to his habitual absence and harmful presence for the patients. He has based of cause of action on *mala fide* acts of the respondents and others by claiming that he was imprisoned in K.E. Hostel and his valuable items were stolen and his father was lifted and kidnapped for vested political interests from his home after a midnight robbery committed by some political agents as well as gang of dacoits and human smugglers etc. and thereafter his father was forcibly admitted to hospital and was assassinated by Railway Police in north Surgical Ward, Mayo Hospital, Lahore. He further refers to some other acts of betrayals and extortion committed against him and claims that he and his family was not only kidnapped but also imprisoned and he was forced to work in a remote area of Sheikh Zaid

Hospital, Rahim Yar Khan and also was detained in Pearl Continental Hotel. He has also blamed political *Maafia* of Railways Transport wing headed by some political persons along with their supporters besides certain transporters, university *Maafias* having their presence in the Boys and Girls K.E. Hostel and some religious Jaamias who have used their resources to bluff, scam, hypnotize, cheat, loot, deceive and trap residents' property and attacked over his native home. He further claims that his parents were kidnapped, went missing and were murdered by Railway Police in Mayo Hospital as a result of collusion and criminal conspiracy against them and they are still missing and are being kept in confinement in a dark room in GOR-I behind the house of a political personality. He also blames the hospital authorities of corrupt practices, evil deeds and missing of patients including his parents. Further claims that his telephone conversation was also tapped and seeks recovery of damages and resolution of all afore-mentioned grievances by making the afore-referred prayer.

3. On the basis of afore-said facts, the petitioner has filed different applications before various authorities including SHO Qila Gujjar Singh Wala, Administration of Mayo Hospital, Office of the Commissioner, Prime Minister's Performance Delivery Unit (PMDU) Pakistan

Citizen Portal (PCP) Mayo Hospital, Lahore, but he has neither disclosed their result nor challenged any adverse order passed on his applications. The petition is *inter alia* based on afore-mentioned facts, narrated in a confused manner, the authenticity of which cannot be determined in constitutional jurisdiction of this Court as the same requires deeper probe into the disputed factual aspect of matter and recording of evidence for its resolution, which is not permissible in ordinary circumstances. Reliance in this regard is placed on principles laid down in judgments reported as Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others (2012 SCMR 455) and Muhammad Riaz Bhatti v. Federation of Pakistan (2004 SCMR 1120); in Dr. Akhtar Hassan Khan's case (*supra*) it has been observed as under:

“25. Question No.2 has two dimensions i.e. (i) *mala fides* or collusion and (ii) violation of mandatory provisions of law and the rules framed thereunder. The allegations of *mala fides* and of the impugned exercise being collusive are questions of fact requiring factual inquiry. It is by now a well-established principle of judicial review of administrative action that in absence of some un-rebuttable material on record *qua mala fides*, the Court would not annul the order of Executive Authority which otherwise does not reflect any illegality or jurisdictional defect. In Federation of Pakistan v. Saeed Ahmed Khan (PLD 1974 SC 151), this Court was called upon to dilate upon the *mala fides* as a ground for exercise of power of judicial review of

administrative action and the Court observed as follows:--

“Mala fides is one of the most difficult things to prove and the onus is entirely upon the person alleging mala fides to establish it, because, there is, to start with, a presumption of regularity with regard to all official acts, and until that presumption is rebutted, the action cannot be challenged merely upon a vague allegation of mala fides. As has been pointed out by this Court in the case of the Government of West Pakistan v. Begum Agha Abdul Karim Shorish Kashmiri (PLD 1969 SC 14), mala fides must be pleaded with particularity, and once one kind of mala fides is alleged, no one should be allowed to adduce proof of any other kind of mala fides nor should any enquiry be launched upon merely on the basis of vague and indefinite allegations, nor should the person alleging mala fides be allowed a roving enquiry into the files of the Government for the purpose of fishing out some kind of a case.

“Mala fides” literally means “in bad faith”. Action taken in bad faith is usually action taken maliciously in fact, that is to say, in which the person taking the action does so out of personal motives either to hurt the person against whom the action is taken or to benefit oneself.”

4. In Muhammad Riaz Bhatti's case (*supra*), it has been held as under:-

“It may be noted that in terms of Article 199 of the Constitution relief is only to be sought by an aggrieved person but in present case it appears that on the basis of vague plea the petitioner has sought relief, as such the office of the High Court refused to accept the said writ petition. The learned Chief Justice, after having

considered the office objection, upheld the same. In our opinion, the objection raised by the office has been rightly maintained, therefore, no interference by this Court is called for. The instant petition is therefore dismissed.”

5. High Court was not to resolve disputed question of facts in exercise of Constitutional jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, as was held by the Hon’ble Supreme Court of Pakistan in a case reported as Fida Hussain and another v. Mst. Saiqa and others (2011 SCMR 1990) and in another case reported as Messrs Punjab Beverage Company (Pvt.) Ltd through General Manager (Administration) v. Central Board of Revenue and 4 others (2001 PTD 3929), the Hon’ble Supreme Court of Pakistan has held as follows: “Superior Courts should not involve themselves into a thorough probe or in-depth investigation of disputed questions of fact which necessitate taking of evidence”.

6. In view of what has been discussed above, it is observed that this Constitutional petition is based on jumbled and incoherent facts narrated in a confused manner, vague in details, raising multifarious and indefinite grounds and allegations requiring roving inquiry in affairs of various departments for fishing out some kind of a case with prayer which itself is also multidimensional

coupled with the fact that the petitioner also has availed remedies before certain other forums, the result of which has not been disclosed. Consequently, without commenting upon merits of the case lest it may prejudice any other remedy available to the petitioner under the law, this petition is **dismissed** as not maintainable.

(MUZAMIL AKHTAR SHABIR)
JUDGE

KMSubhani

Approved for reporting.